FairExit
Challenge your severance offer.



YOUR SEVERANCE REPORT

Your offer, organized.

We read your letter and your contract, checked them against the law, and estimated the range a case like yours can reach. Use it to understand your offer and prepare. **It's an estimate, not a promise**; only a lawyer can confirm your exact number.

DO-IT-YOURSELF · NOT LEGAL ADVICE · YOU'RE IN CONTROL

PREPARED FOR
Client

ROLE
Temporary Data Operations Analyst · 3 years of service

WHERE
British Columbia

DATE
November 5, 2026

For information only — not legal advice · Yours to keep and use

General information, not legal advice. We've done our best to make this clear and accurate, but please check the details before you act. If anything feels unclear, a professional can help.

What's in *this report.*

Read it top to bottom, or jump to the page you need.

1 Where you stand — **pages 4–10**
Your offer checked against the rules, and what lines up.

2 Two numbers to understand — **pages 11–12**
The legal minimum, and what a court might award.

3 What's in your letter and contract — **pages 13–16**
Clause by clause, with sources.

4 Questions to prepare — **pages 17–19**
Calm questions for HR, and this week's steps.

5 Your next step — **pages 20–21**
The three paths, side by side.

6 Where every number comes from — **page 22**
Every number and rule, with its official source.

7 Talking to a lawyer — **page 23**
How to hand this report over, and your report ID.

How to read the colours: they always mean the same thing.

Green · lines up | Red · doesn't line up | Yellow · ask about it | Gray · good to know | Dark blue · your key number

This report checks your offer against British Columbia's rules and gives you an **estimated range**: the legal minimum (a fixed rule) up to what courts often award for someone like you (an estimate). It doesn't promise an amount or tell you what to do.

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The important stuff — *please read.*

Straight talk about what this pack is, what it isn't, and where the responsibility sits.

1 · This is a do-it-yourself report

This is designed for you to use **on your own**. It organizes your offer and prepares questions — it is **not** advice a lawyer would give you after reviewing your full situation, and a lawyer may see things very differently. Anything you choose to send or say, you're doing **on your own initiative**.

2 · Information, not legal advice

This pack gives you information to help you prepare. It does **not** make FairExit your lawyer and does not create a lawyer–client relationship. Nothing here is legal advice.

3 · We use AI — mistakes can happen

The explanations, notes, and draft questions are produced by **software and AI** from general rules and the details you gave us. **AI can be wrong, details can be misread, and laws change**. It is up to you to read everything carefully and confirm every fact is correct before you rely on it.

4 · No guarantee — and the decisions are yours

Any general information here can be wrong, and outcomes depend on your paperwork and your situation. **FairExit accepts no responsibility for what you send, say, or decide based on this report** — those choices are entirely yours. Deadlines to act can be short; confirm them with a lawyer promptly.

5 · Only a lawyer can give you the exact answer

We provide clarity in an organized way. **Only a licensed employment lawyer** can confirm what you're truly owed, review your real contract, and advise you. If anything feels urgent or serious — especially before you sign anything — speak to a lawyer. The first call is often free.

6 · Once a lawyer takes your case, follow them

Everything here is **general and organizational**. If you retain a lawyer, their advice **supersedes** anything in this report — follow your lawyer, not this document. **Do not rely on this report once you're working with a lawyer**.

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SECTION 1 OF 5 · WHERE YOU STAND

1

Where you stand

Your offer, checked against the rules. What they offered, what the rules say, and what lines up and what doesn't. If you only read one section, read this one.

IN THIS SECTION

Your offer at a glance

Things they don't always tell you

Did they do it right?

Your estimated range

What lifts your range

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Your offer, *at a glance.*

The short version before the detail.

Your letter offers $8,400 on top of the legal minimum, and it does not give a date to sign by, so ask for any deadline in writing. Some of your details do not match your documents: you told us 3 years of service and $100,000 a year, but your contract is for a temporary role that starts August 11, 2025 and pays by the hour, so the numbers in this report may change once that is sorted out. Your last day was January 30, 2026, which means the 6-month window to file a complaint with the Employment Standards Branch may already have closed. Parts of the contract copy were hard to read, including the signature lines, so a clearer, signed copy would help.

Employer	**Not stated**
Years of service	**3 years of service**
Your pay	**$100,000 a year**
They offered	**$8,400,**
Legal minimum	**$5,769 (3 weeks)**
Decide by	**No deadline written**

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Things they don't always *tell you.*

Here's what the official rules say, so you can decide on your timeline, not theirs. Every point links to a government source.

WHAT PEOPLE OFTEN THINK	WHAT THE OFFICIAL RULES SAY
"If an offer is more than the legal minimum, it must be fair."	The Employment Standards Act sets only the floor. Common-law notice applies unless a valid clause caps you, and that can be higher. Source: CA-BC-S1
"In British Columbia you get severance pay on top of notice."	The Act has no separate severance layer. Compensation for length of service, up to 8 weeks, is the whole legal floor. Source: CA-BC-S1
"Taking a severance payment delays EI."	Until October 9, 2027, a temporary measure means separation pay is not taken off EI, and the waiting period is waived. Source: CA-BC-S5
"A layoff always means you can be called back later, so nothing is owed."	In British Columbia, a temporary layoff becomes a termination after 13 weeks in any 20-week period. Your letter gives a last scheduled working day. Source: CA-BC-S3
"Missing the 6-month complaint window ends every claim."	It ends the free Employment Standards Branch route, but it does not end a court claim. Source: CA-BC-S4

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Did they do it *right?*

Your letter, your contract and the rules, side by side. Green = it lines up. Red = it doesn't. Yellow = worth asking about.

1 LINES UP | 0 DON'T | 10 TO ASK ABOUT | 2 GOOD TO KNOW

WHAT WE CHECKED	YOUR SEVERANCE LETTER SAYS	YOUR EMPLOYMENT CONTRACT SAYS	THE RULES SAY	DOES IT LINE UP?
Your offer	A gross lump sum of $8,400, less withholdings, described as additional to the legal minimum.	Nothing about a severance offer.	Unless a valid clause limits you, common-law notice applies. Our estimate is $22,500 to $30,000 (3 to 4 months of base pay). Source: CA-BC-S1	**Ask about this** The offer is below our estimate, but the estimate uses 3 years and $100,000 a year, which your contract does not seem to match, so a lawyer can say what range really fits you.
Legal minimum (compensation for length of service) From your answers	No number of weeks is written.	Section 7 refers to amounts required by law.	Employment Standards Act: 3 weeks after 3 years of service, which is $5,769 at $1,923 a week of regular wages. British Columbia has no separate severance pay on top of this. Source: CA-BC-S1	**Ask about this** This uses 3 years of service. Your contract start date would mean less service, and the Act gives 1 week after 3 months and 2 weeks after 12 months.
Notice you already worked	No working notice is written.	Not stated.	Notice you already worked comes off the notice still owed. Source: CA-BC-S1	**Good to know** Employment Standards Act notice 3 weeks - 0 weeks you worked = 3 weeks still owed as pay.
Years of service From your answers	Not stated.	Expected start date August 11, 2025.	You need 3 months in a row of work before any compensation for length of service is owed. After that, the weeks grow with your years. Source: CA-BC-S1	**Ask about this** You told us 3 years, but the contract start date points to much less. Earlier work for the same employer may count, so ask HR for your start date in writing.
Your pay From your answers	Not stated.	An hourly rate.	The minimum is based on regular wages (base pay). Source: CA-BC-S1	**Ask about this** This report uses the $100,000 a year you gave us. Your contract lists an hourly rate that looks lower, so check your pay stubs to see which is right.
Your bonus	Not mentioned.	No bonus amount.	A bonus counts toward the common-law range only if it was paid most years. It never adds to the legal minimum. Source: CA-BC-S1	**Ask about this** In your answers you said you get a bonus, but you confirmed no bonus amount from the contract, so the range here uses base pay only.

Checked against British Columbia's Employment Standards Act and court decisions. Sources are on the Sources page.

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Did they do it *right?* (continued)

Your letter, your contract and the rules, side by side (continued).

WHAT WE CHECKED	YOUR SEVERANCE LETTER SAYS	YOUR EMPLOYMENT CONTRACT SAYS	THE RULES SAY	DOES IT LINE UP?
Clause limiting you to the minimum	Not stated.	No clause limits you to the legal minimum. Section 7 refers to amounts required by law and to common-law obligations.	Common-law notice applies unless a valid clause caps you. Source: CA-BC-S1	✓ **Lines up** You confirmed the contract has no clause that limits you to the legal minimum.
Temporary job title	Not stated.	Temporary Data Operations Analyst.	Not covered by the rules in this report.	! **Ask about this** Your contract calls the job temporary. Whether it had a fixed end date can change what you are owed, and a lawyer can explain how.
Release of claims	The extra payment depends on signing a separate severance agreement, which may include a release of claims.	Not stated.	Not covered by the rules in this report.	! **Ask about this** The separate agreement was not included, so it is not clear what you would give up by signing it.
Benefits	No end date is written. Benefits follow the plan documents, and the end date will be sent separately.	Not stated.	Not covered by the rules in this report.	! **Ask about this** Without an end date, it is not clear how long your coverage lasts.
Deadline to sign	No deadline is written.	Not stated.	A deadline printed on an offer is the employer's, not the law's. You can ask for more time in writing.	! **Ask about this** Ask HR in writing whether the offer is still open and whether there is a date to respond by.
Complaint deadline	Last scheduled working day: January 30, 2026.	Not stated.	You have 6 months after your last day to file a complaint with the Employment Standards Branch. Missing it does not end a court claim, but it ends the free route. Source: CA-BC-S4	! **Ask about this** Six months from January 30, 2026 ends around the end of July 2026, so a lawyer can tell you which routes are still open.
EI	Not stated.	Not stated.	Apply for EI the week you stop working. Until October 9, 2027, a temporary measure means separation pay does not delay EI. Source: CA-BC-S5	i **Good to know** If you have not applied yet, ask Service Canada how a late application is handled.

Checked against British Columbia's Employment Standards Act and court decisions. Sources are on the Sources page.

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Your estimated *range*.

The legal minimum is a fixed rule. The top is our estimate of what a court might award, and only applies if your contract doesn't validly limit you.

ESTIMATED SEVERANCE RANGE

$5,769 – $30,000

Floor = 3 weeks compensation for length of service ($5,769). Top = about 3–4 months of base pay ($30,000), which applies only if your contract doesn't validly limit you. Your letter offers **$8,400, on top of the legal minimum**.



Your offer — $8,400, (on top of legal minimum)

Offer $8,400, (additional)

Legal minimum $5,769

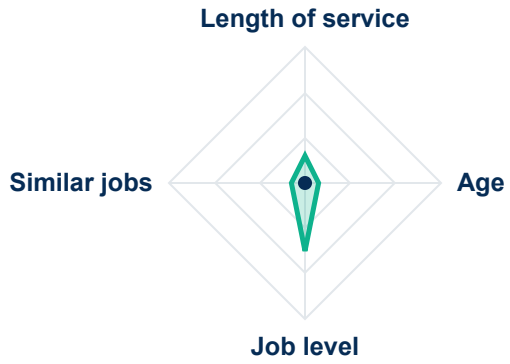
Likely open · courts $22,500–$30,000

This is an estimate, not a promise. Base pay only: a bonus and benefits during the notice period could add to it. Pay from a new job usually reduces the part above the minimum. Only a lawyer can confirm your number.

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What lifts your *range*.

Courts look at four things when they decide how much notice is fair. Your pay isn't one of them: it turns the months into dollars.



Centre = works a little in your favour · edge = works a lot

- **Length of service: 3 years of service.** You told us 3 years, which is a short time. Your contract suggests even less, which would lower this further.
- **Age.** At 23, age usually does not add much time to a notice period.
- **Job level.** You described the role as professional, but the contract title is a temporary analyst role, so we placed it in the middle.
- **Similar jobs nearby.** You said there are many similar jobs nearby, which usually means a shorter notice period.

Your pay: $100,000 a year. It turns the months into dollars.

What your shape says

Your chart reaches furthest on **job level**. That is why the estimate reaches toward **$30,000**.

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2

Two numbers to understand

There are two numbers in your situation: the legal minimum, a fixed rule you can check yourself, and what a court might award, which is our estimate. This section explains the difference in plain words.

IN THIS SECTION

The floor, and the range above it

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The floor — and *the range above it.*

One number is a rule. The other is an estimate. Here is how each is worked out.

1 · The legal minimum (a rule you can check)

- Compensation for length of service: 3 weeks × regular weekly pay = $5,769 (Employment Standards Act)
- Separate statutory severance pay: None (British Columbia has no separate severance pay layer on top of compensation for length of service)
- **Legal minimum: $5,769**

2 · What a court might award (our estimate)

If your contract doesn't validly limit you, a court can award "reasonable notice" **instead of** the minimum, based on four factors: length of service, age, job level and similar jobs nearby. For you: about **3–4 months of base pay, $22,500–$30,000**. Courts rarely go past about 24 months. Pay from a new job usually reduces the part above the minimum.

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3

What's in your letter and contract

Clause by clause: what your documents say, what the rules say, and what it could mean for you. Each point shows where it comes from.

IN THIS SECTION

Payment depends on a separate agreement

What happens when the job ends (contract section 7)

Benefits

General information, not legal advice. We've done our best to make this clear and accurate, but please check the details before you act. If anything feels unclear, a professional can help.

The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

ASK ABOUT IT

1. Payment depends on a separate agreement

YOUR DOCUMENTS SAY

"conditional on the parties signing a separate written severance agreement that sets out its complete terms, including any release of claims"

WHAT THE RULES SAY

The $8,400 is paid only if you sign another agreement. That agreement may ask you to give up future claims against the employer. It was not included with your letter.

→ **What would I give up by signing the release, and how long do I have to review it or change my mind?**

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The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

LINES UP

2. What happens when the job ends (contract section 7)

YOUR DOCUMENTS SAY

"any notice, compensation, wages and other amounts required by applicable law and any enforceable contractual or common-law obligations"

WHAT THE RULES SAY

This wording does not limit you to the legal minimum. It refers to both the law and common-law obligations.

→ **Since my contract calls the job temporary, does this wording still give me common-law notice?**

Where this comes from: CA-BC-S1

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The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

ASK ABOUT IT

3. Benefits

YOUR DOCUMENTS SAY

"will end or continue according to governing plan documents, the terms of any applicable notice period and applicable law"

WHAT THE RULES SAY

No end date is given. The date depends on the plan documents, which the letter says will be sent separately.

→ **What date will my benefits end, and can I see the plan documents?**

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4

Questions to prepare

Calm questions you can send to HR, and practical steps for this week. You decide what to use and when.

IN THIS SECTION

Questions you might choose to ask

Take your time, and keep it simple

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Questions you might *choose to ask*.

Neutral questions you might choose to send. You decide what to send. This is not a demand letter or legal advice.

To: **Human Resources** · Subject: **A few questions about my separation offer**

Hello,

Thank you for the letter. Before I decide, I have a few questions.

- Could you send me a copy of the separate severance agreement, including the release, so I can review it?
- Is the offer still open, and is there a date by which I need to respond? Could you confirm that in writing?
- What date did my employment start, and does any earlier work for you count toward my years of service?
- Was my job a fixed-term contract, and if so, what end date did it have?
- What regular wages are you using to work out my compensation for length of service?
- How many weeks of compensation for length of service will I receive under the Employment Standards Act, and when will it be paid?
- Was I eligible for a bonus, and will any bonus be paid?
- What date will my benefits end?
- Will vacation pay be added to my compensation for length of service?
- Does the severance agreement include a review period or a period to change my mind after signing?
- Could you send me a clear, signed copy of my employment contract?

Thank you,
Client

Why this works: it asks clear questions instead of making claims, and asks for time to understand the offer.

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Take your time — *and keep it simple.*

Two things that help: not rushing, and keeping your questions clear.

You usually don't have to decide on the spot

Your documents do not give a deadline to sign by. Asking HR in writing whether there is a response date is a normal first step before making any decision.

This week — the practical stuff

- Ask HR in writing for the separate severance agreement, a clear signed copy of your contract, and any date to respond by.
- Gather your pay stubs, tax slips and any earlier contracts. These will show your real start date and pay.
- Wait to sign anything until you have read the full severance agreement and release.
- If you have not applied for EI yet, apply now, and ask Service Canada how a late application is handled.
- Book a talk with a lawyer about the temporary job title, which routes are still open given the complaint window, and what range fits your real service and pay.

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SECTION 5 OF 5 · YOUR NEXT STEP

5

Your next step

The three paths side by side, where every number in this report comes from, and how to hand it to a lawyer if you want one.

IN THIS SECTION

You don't have to sign today

Where every number comes from

Talking to a lawyer

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You don't have to *sign today*.

Here's how the three paths compare.

OPTION 1

Sign as-is

Accept the offer and move on.

You get $8,400,. It gives up the contract question.

OPTION 2

Ask your questions

Use Section 4 to raise it yourself.

You run it yourself, using Section 4.

OPTION 3

Talk to a lawyer

They can tell you what applies to you.

First call often free. The contract question needs a lawyer to read it.

Honest note: this report helps you ask the right questions. The contract question in Section 3 is one a lawyer needs to read your contract to answer.

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Where every number *comes from*.

British Columbia statute text checked on e-Laws and government guides.

IN YOUR REPORT	HOW WE GOT IT	SOURCE

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One step, and a lawyer *takes it from here.*

If they push back, go quiet, or it feels like too much, you can hand this report to a lawyer.

Show them this page.

Your report ID connects this report to FairExit, so they can see what you've already done. Connecting is free; you choose whether to go further.

Report ID **RPT-SYNC-FIXED**



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Built on the details you confirmed on November 5, 2026. Rules as of October 25, 2026.

Report ID RPT-SYNC-FIXED · generated November 5, 2026

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